CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. EEFF6E337
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
CONFIDENTIAL - SUBJECT TO PROTECTIVE ORDER

From: Keffer, John <jkeffer@kslaw.com>
Sent: Fri, 22 Dec 2000 07:16:00 -0800 (PST)
To: Mrs. C. Kay Mann (E-mail) <kay.mann@enron.com>
Subject: Client Alert-Hart Scott-Rodino Amendments

Attached is a Client Alert, which discusses amendments to the Hart-Scott-Rodino Antitrust Improvements Act of 1976 that were signed this week by the President. As you know, the HSR Act imposes a premerger notification obligation for mergers and acquisitions exceeding certain size thresholds.

The amendments take effect as of February 1, 2001 and govern transactions that close on or after that date. As anticipated, the amendments increase the size-of-transaction threshold from $15 million to $50 million, and they eliminate the 15% prong of the size-of-transaction threshold. They also eliminate the size-of-person threshold for transactions with a value exceeding $200 million. Congress projects that about half of filings will be eliminated under the new thresholds. The amendments also adopt a three-tier filing fee structure, with filing fees increased for larger transactions.

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<<Hart-Scott-Rodino HSR Amendment Client Alert.DOC>>

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ENRON-117672209897